

		scheduled for just months later rather than years away, proving Defendants' statements were categorically false. (See FAC ¶ 23.) The docket is attached to the FAC and is dated 11/4/24. (FAC, ¶ 24, Ex. B.) Plaintiff's argument lacks merit. Plaintiff's discovery of wrongdoing on 9/24/23 triggered the one-year limitations period to diligently investigate and bring suit. The court's docket was available online. Plaintiff could have accessed it any time after realizing Defendants did not follow his instructions. He failed to do so until 11/4/24. The demurrer is sustained with 20 days leave to amend.
13.	LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868	1. DEMURRER TO AMENDED COMPLAINT Defendant Nili Alai, M.D.'s Demurrer to Plaintiffs' First Amended Complaint is OVERRULED. Alai's request for judicial notice (ROA 606) of filings in various court proceedings is granted. Defendant demurs to the first cause of action for defamation and the fourth cause of action for declaratory relief. The First Amended Complaint (FAC) was filed on 1/25/21. Alai filed a motion to deem Plaintiff a vexatious litigant an anti-SLAPP motion to strike on 2/2/21, automatically staying the litigation. Alai's counsel filed a declaration under Code of Civil Procedure section 430.41 on 3/15/21 stating they intended to meet and confer regarding a demurrer. On 11/4/21, the Court ruled this action was stayed pending the appellate court's resolution of the appeal regarding Defendant's anti-SLAPP motion. A remittitur was issued on 12/9/22. Alai's vexatious litigant motion was denied on 2/9/23. On 4/27/23, the Court stayed the matter "pending resolution of" another anti-SLAPP appeal. On 8/15/24, the remittitur in the second appeal was issued. In summary, the case was stayed between approximately February 2021 and August 2024. Defendant filed an Answer to the FAC on 12/6/24. The Demurrer was filed on 12/4/25. In opposition, Plaintiffs contend Alai improperly filed the demurrer after filing her answer, which is incorrect as stated above. However, Plaintiffs also argue the subject demurrer had to be filed within 30 days of the remittitur issued on 8/15/24, which lifted the stay that had been in effect since 2/2/21. Alai does not respond to

this argument in reply, apparently conceding the demurrer is untimely. Therefore, the demurrer is overruled as untimely because it was not filed until more than 30 days after the stay was lifted following filing of the FAC.

2. DEMURRER TO AMENDED CROSS-COMPLAINT

The Demurrer of Cross-Defendants Law Offices of Mark B. Plummer, P.C. and Mark B. Plummer (Movants) to the First Amended Cross-Complaint of Nili Alai and 12712 LLC (FACC) is OVERRULED.

Code of Civil Procedure section 430.40(a) states, “A person against whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or cross-complaint.”

Code of Civil Procedure section 430.41(a) provides, “(a) Before filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. If an amended complaint, cross-complaint, or answer is filed, the responding party shall meet and confer again with the party who filed the amended pleading before filing a demurrer to the amended pleading.

(1) As part of the meet and confer process, the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies. The party who filed the complaint, cross-complaint, or answer shall provide legal support for its position that the pleading is legally sufficient or, in the alternative, how the complaint, cross-complaint, or answer could be amended to cure any legal insufficiency.

(2) The parties shall meet and confer at least 5 days before the date the responsive pleading is due. If the parties are not able to meet and confer at least 5 days before the date the responsive pleading is due, the demurring party shall be granted an automatic 30-day extension of time within which to file a responsive pleading, by filing and serving, on or before the date on which a demurrer would be due, a declaration stating under penalty of perjury that a good faith attempt to meet and confer was made and explaining the reasons why the parties could not meet and confer. The 30-day extension shall commence from the date the responsive pleading was previously due, and the demurring party shall not be subject to default during the period of the extension. Any further extensions shall be obtained by court order upon a showing of good cause.”

Here, the FACC was filed on 7/2/25.

On 8/4/25, Movants filed a declaration in support of automatic extension which stated they did not meet and confer because, “There was an improper Amended Cross-Complaint filed without leave to amend. [¶] There is a motion to dismiss pending for violation of Rule of Court 3.110 – If the Defendant is given Leave of Court – there will be a Demurrer.”

Movants’ demurrer was not filed until 9/3/25, approximately 60 days after the FACC was filed.

Section 430.41(a) provides for a 30-day extension of time to file a demurrer under specific circumstances – when the demurring party makes “a good faith attempt to meet and confer” but the parties “could not meet and confer” for specified reasons.

Here, Movants’ declaration in support of the request for automatic extension does not describe any good faith attempt to meet and confer or explain why the parties were unable to do so. Rather, it states the reasons why Movants neglected or decided not to meet and confer – they strategically chose to file a motion to dismiss instead of promptly preparing a demurrer. The Court denied that motion to dismiss on 2/24/26. Counsel’s decision to prepare a motion to dismiss rather than to meet and confer and/or file a timely demurrer is not grounds for an automatic extension under section 430.41. Therefore, the demurrer is overruled as untimely.

3. MOTION TO QUASH SUBPOENA

Defendant Nili Alai, M.D.’s (Alai) Motion to Quash Deposition Subpoena to Barbara Shang, M.D. is DENIED.

The subject subpoena dated 10/14/25 seeks information identifying the owner/operator of www.barbarashangmd.com.

Alai contends the subpoena is not reasonably calculated to lead to relevant evidence. Alai states Plaintiffs have offered no explanation for the subpoena to third party Dr. Shang.

In opposition, Plaintiffs state they believe the subject website was created by Alai in order to make false statements of fact about Dr. Shang. Plaintiffs contend this demonstrates a pattern and practice of Alai setting up websites to defame people she dislikes.

Evidence Code section 1101 states,

“(a) Except as provided in this section and in Sections 1102, 1103, 1108, and 1109, evidence of a person's character or a trait of his or her character (whether in the form of an opinion, evidence of reputation, or evidence of specific instances of his or her conduct) is inadmissible when offered to prove his or her conduct on a specified occasion.

	(b) Nothing in this section prohibits the admission of evidence that a person committed a crime, civil wrong, or other act when relevant to prove some fact (such as motive, opportunity, intent, preparation, plan, knowledge, identity, absence of mistake or accident, or whether a defendant in a prosecution for an unlawful sexual act or attempted unlawful sexual act did not reasonably and in good faith believe that the victim consented) other than his or her disposition to commit such an act. (c) Nothing in this section affects the admissibility of evidence offered to support or attack the credibility of a witness.” Here, Plaintiffs have shown the subpoena is reasonably calculated to lead to discovery of evidence regarding whether Alai has created other false websites, which may be admissible under section 1101(b) or (c). (Code Civ. Proc. § 2017.010.) Therefore, the motion is denied.
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